

STATE OF NEW YORK

6491--B

2025-2026 Regular Sessions

IN SENATE

March 14, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to increasing the transparency of tariff and delivery charges in electricity and natural gas bills

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 44 of the public service law is amended by adding two new subdivisions 8 and 9 to read as follows:

8. (a) For purposes of this subdivision, "tariff cost estimate" means an estimate of any increase in the price or prices of electricity and natural gas, or any associated goods and services, resulting directly or indirectly from tariffs imposed by the federal government on the importation of goods, services or materials from countries outside the United States or due to tariffs placed by governments of countries or their political subdivisions outside the United States on the exportation of goods, services or materials to the United States. Such estimate shall include all increases in price attributable to the tariffs.

(b) Notwithstanding any other provision of law, as part of every billing statement, any utility corporation that serves customers in this state shall provide a tariff cost estimate in a clear, conspicuous and easily understandable manner.

9. (a) Each electric corporation and gas corporation subject to the jurisdiction of the commission shall include on each customer bill for delivery services an itemized disclosure of the primary cost components comprising the delivery portion of the bill. Such disclosure shall, at a minimum, provide average allocations per customer based on the utility

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 corporation's most recent rate plan approved by the commission,
2 expressed in dollars, for the following categories:

3 (i) executive compensation;

4 (ii) repairs and maintenance;

5 (iii) depreciation of utility assets;

6 (iv) interest on loans and other debt;

7 (v) rents for facilities and equipment;

8 (vi) property taxes paid to local governments, including towns,
9 cities, villages and school districts;

10 (vii) income taxes on earnings;

11 (viii) shareholder return, including dividends and retained earnings;
12 and

13 (ix) payment to the electric or gas corporation's parent company.

14 (b) The commission shall promulgate rules to prescribe the format and
15 method of calculation for such disclosures. The commission may require
16 such disclosures to appear on the bill face or as a supplemental state-
17 ment provided with the bill.

18 (c) Utility corporations shall annually update these allocations to
19 reflect the most recent revenue requirement approved by the commission.

20 § 2. This act shall take effect immediately.